

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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NELSON LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER LUIS
PICHARDO (SHIELD #794), POLICE OFFICER TAVAREZ
(SHIELD #02044), POLICE OFFICER PENAMEDINA
(SHIELD # 31145), POLICE OFFICER CARRER (SHIELD #
11001), POLICE OFFICER GUERRERO (SHIELD # 25670)
POLICE OFFICER JOHN DOE #1, POLICE OFFICERS
JOHN DOES #2-6 (names and numbers of who is unknown at
present), and other unidentified members of the New York City
Police Department,

Defendants.
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SUMMONS

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Basis of Venue:
Place of Incident

Plaintiff designates
New York County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 3, 2018

Respectfully submitted,

/s/

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TO:

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street, New York, NY 10007

NYPD 28th PRECINCT
2271 Frederick Douglass Blvd, New York, NY 10027

POLICE OFFICER LUIS PICHARDO (SHIELD # 794)

POLICE OFFICER TAVAERZ (SHIELD # 02044)

POLICE OFFICER PENAMEDINA (SHIELD # 31145)

POLICE OFFICER CARRER (SHIELD # 11001)

POLICE OFFICER GUERRERO (SHIELD # 25670)

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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NELSON LOPEZ,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER LUIS
PICHARDO (SHIELD #794), POLICE OFFICER TAVAREZ
(SHIELD #02044), POLICE OFFICER PENAMEDINA
(SHIELD # 31145), POLICE OFFICER CARRER (SHIELD #
11001), POLICE OFFICER GUERRERO (SHIELD # 25670)
POLICE OFFICER JOHN DOE #1, POLICE OFFICERS
JOHN DOES #2-6 (names and numbers of who is unknown at
present), and other unidentified members of the New York City
Police Department,

Defendants.
-----X

Plaintiff **Nelson Lopez**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants and undue force used upon him during that unprivileged arrest. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff and caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff through fabrication of evidence. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Fourth Amendment of the U.S. Constitution and state tort laws and state constitutional articles.

PARTIES

2. Nelson Lopez is a citizen of the United States and a resident of New York, New York.
3. Police Officer Luis Pichardo (Shield #794) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Luis Pichardo (Shield #794) is being sued in his individual capacity and official capacity.
5. Police Officer Tavaréz (Shield #02044) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer Tavaréz (Shield #02044) is being sued in his individual capacity and official capacity.
7. Police Officer Penamedina (Shield # 31145) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer Penamedina (Shield #31145) is being sued in his individual capacity and official capacity.
9. Police Officer Carrer (Shield # 11001) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Police Officer Carrer (Shield #11001) is being sued in her individual capacity and official capacity.
11. Police Officer Guerrero (Shield #25670) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
12. Police Officer Guerrero (Shield #25670) is being sued in his individual capacity and official capacity.
13. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
14. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
15. New York Police Officers John Doe #2-6 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
16. Police Officers John Doe #2-6 are being sued in his individual capacity and official capacity.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
19. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50 relative to his malicious prosecution and denial of fair trial claims.
20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
21. The City of New York held a 50(h) hearing examination of the Plaintiff on June 7, 2017.

STATEMENT OF FACTS

22. On May 24, 2016, at approximately 1pm outside 144 W. 124th Street, New York, New York, Mr. Lopez was walking to the store when he was approached by Police officers. He was arrested for trespassing, resisting arrest, and possession of drugs. Mr. Lopez denies these charges.
23. In arresting Mr. Lopez, Defendants used undue force upon him, having no privilege whatever to seize him and causing him physical offense and injury in the process.
24. Mr. Lopez has been a target of this precinct and these particular officers for years. He previously filed claims for false arrest and harassment against the City and Officers Pichardo and Tavarez, seek to retaliate against him for having sought to redress his rights despite his right to do so.
25. At Mr. Lopez's arraignment arising from Defendants' fabrication of evidence against him, Mr. Lopez was unable to pay the bail that was set, causing his unlawful post-arraignment

imprisonment as a result of Defendants' false statements regarding the existence of probable cause.

26. Mr. Lopez was released on the 180.80 day when prosecution did not present the case to the grand jury.
27. Mr. Lopez was incarcerated for approximately seven days prior to these 180.80 release as a result of Defendants' fabrication of evidence to effect a false and retaliatory arrest of Mr. Lopez and commence a malicious prosecution against him.
28. Mr. Lopez then was required to attend various court appearances.
29. On January 5, 2017, Mr. Lopez's case was dismissed in its entirety in a termination favorable to him for the purposes of completing the elements and accrual of his state malicious prosecution and other claims, and sealed on motion of the prosecution.
30. Plaintiff thereafter filed a notice of claim timely for all claims asserted. A 50-h hearing was held and thirty (30) days passed without settlement of Plaintiff's claim.

FIRST CAUSE OF ACTION

ASSAULT

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Defendant was assaulted by numerous officers.
33. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
34. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**BATTERY**

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Defendant was assaulted by numerous officers.
37. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

39. Plaintiff repeats and alleges paragraphs 1 through 38 as if fully set forth herein.
40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
41. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
45. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
46. Defendants commenced and continued a criminal proceeding against plaintiff.
47. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
48. The prosecution and criminal proceedings terminated favorably to plaintiff on January 5, 2017.
49. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
50. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION**FAILURE TO INTERVENE**

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
55. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
56. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
57. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
58. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION**NEGLIGENCE**

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants owed a duty of care to plaintiff.
61. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
62. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
63. All of the foregoing occurred without any fault by plaintiff.
64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
67. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
68. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

NINTH, TENTH, ELEVENTH, TWELFTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (9th claim); false-arrest/excessive-force/unlawful-search claims (10th claim); malicious-prosecution claim (11th claim) and deprivation-of-fair-trial claim (12th claim).

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.
70. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
71. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
72. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth and Fourteenth Amendment rights.
73. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue force upon him, unlawful search, malicious prosecution and fabrication of evidence

violated his First, Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.

74. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
75. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

THIRTEENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.
77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
78. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
79. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
80. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.

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TO:

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street, New York, NY 10007

NYPD 28th PRECINCT
2271 Frederick Douglass Blvd, New York, NY 10027

POLICE OFFICER LUIS PICHARDO (SHIELD # 794)
POLICE OFFICER TAVAERZ (SHIELD # 02044)
POLICE OFFICER PENAMEDINA (SHIELD # 31145)
POLICE OFFICER CARRER (SHIELD # 11001)
POLICE OFFICER GUERRERO (SHIELD # 25670)

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
April 3, 2018

/s/
Ilissa Brownstein, Esq.